Roe v. Wade

U.S. Supreme Court · 410 U.S. 113 · January 22, 1973 · Justice Harry Blackmun (majority)

Source: Roe v. Wade, 410 U.S. 113 (1973), opinion of the Court by Justice Blackmun, text via Cornell Legal Information Institute. Public domain.

In a 7-2 decision, the Supreme Court struck down a Texas law criminalizing most abortions and held that the Constitution protects a woman's right to make decisions about her own pregnancy. Blackmun's majority opinion located that right in a 'zone of privacy' implied by the Due Process Clause of the Fourteenth Amendment and structured permissible state regulation around a trimester framework. Roe was a flashpoint of late-20th-century American politics; it was overturned by the Court in Dobbs v. Jackson Women's Health Organization (2022).

Connect: Roe uses the same 14th Amendment (Class 26) that was originally written to protect freedpeople after the Civil War. Trace how that amendment kept getting reinterpreted across a century.

Key Passages

The right of privacy

> This right of privacy, whether it be founded in the Fourteenth Amendment's concept of personal liberty and restrictions upon state action, as we feel it is, or, as the District Court determined, in the Ninth Amendment's reservation of rights to the people, is broad enough to encompass a woman's decision whether or not to terminate her pregnancy. The detriment that the State would impose upon the pregnant woman by denying this choice altogether is apparent.

Viability

> With respect to the State's important and legitimate interest in potential life, the 'compelling' point is at viability. This is so because the fetus then presumably has the capability of meaningful life outside the mother's womb. … If the State is interested in protecting fetal life after viability, it may go so far as to proscribe abortion during that period, except when it is necessary to preserve the life or health of the mother.

The holding

> A state criminal abortion statute of the current Texas type, that excepts from criminality only a life-saving procedure on behalf of the mother, without regard to pregnancy stage and without recognition of the other interests involved, is violative of the Due Process Clause of the Fourteenth Amendment.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The 1960s-70s women's movement and earlier privacy cases such as Griswold v. Connecticut (1965); many states had laws restricting abortion.
Intended Audience *Who was the source written for?*	The parties to the case, state legislatures, the courts, and the American public.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Justice Harry Blackmun for the 7-2 majority, applying a constitutional right to privacy; the dissenters (White and Rehnquist) argued it should be left to the states.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis tracing change over time in women's legal status from 1848 (Seneca Falls) to 1973.
2. How did Roe rely on the same Fourteenth Amendment used to incorporate the Bill of Rights against the states?
3. Identify ONE later case that either expanded or restricted Roe before it was overturned in 2022.

Roe v. Wade

Justice Harry Blackmun, for the Court · January 22, 1973

Source: Roe v. Wade, 410 U.S. 113 (1973), opinion of the Court by Justice Blackmun, text via Cornell Legal Information Institute. Public domain. Non-contiguous passages are separated by [. . .]; shorter cuts inside a passage are marked with an ellipsis (. . .).

> The Supreme Court held that the constitutional right to privacy is broad enough to include a woman's decision whether to terminate her pregnancy, and set out the trimester framework balancing that right against the state's interests.

Justice Blackmun, for the majority

We forthwith acknowledge our awareness of the sensitive and emotional nature of the abortion controversy, of the vigorous opposing views, even among physicians, and of the deep and seemingly absolute convictions that the subject inspires.

[. . .]

The right of privacy

The Constitution does not explicitly mention any right of privacy. . . . This right of privacy, whether it be founded in the Fourteenth Amendment's concept of personal liberty and restrictions upon state action, as we feel it is, or, as the District Court determined, in the Ninth Amendment's reservation of rights to the people, is broad enough to encompass a woman's decision whether or not to terminate her pregnancy. The detriment that the State would impose upon the pregnant woman by denying this choice altogether is apparent. Specific and direct harm medically diagnosable even in early pregnancy may be involved. Maternity, or additional offspring, may force upon the woman a distressful life and future. Psychological harm may be imminent. Mental and physical health may be taxed by child care. There is also the distress, for all concerned, associated with the unwanted child, and there is the problem of bringing a child into a family already unable, psychologically and otherwise, to care for it. In other cases, as in this one, the additional difficulties and continuing stigma of unwed motherhood may be involved. All these are factors the woman and her responsible physician necessarily will consider in consultation.

The state's interest

On the basis of elements such as these, appellant and some amici argue that the woman's right is absolute and that she is entitled to terminate her pregnancy at whatever time, in whatever way, and for whatever reason she alone chooses. With this we do not agree. . . . As noted above, a State may properly assert important interests in safeguarding health, in maintaining medical standards, and in protecting potential life. At some point in pregnancy, these respective interests become sufficiently compelling to sustain regulation of the factors that govern the abortion decision. The privacy right involved, therefore, cannot be said to be absolute.

[. . .]

We, therefore, conclude that the right of personal privacy includes the abortion decision, but that this right is not unqualified and must be considered against important state interests in regulation.

[. . .]

Texas urges that, apart from the Fourteenth Amendment, life begins at conception and is present throughout pregnancy, and that, therefore, the State has a compelling interest in protecting that life from and after conception. We need not resolve the difficult question of when life begins. When those trained in the respective disciplines of medicine, philosophy, and theology are unable to arrive at any consensus, the judiciary, at this point in the development of man's knowledge, is not in a position to speculate as to the answer.

[. . .]

The ‘compelling’ points

With respect to the State’s important and legitimate interest in the health of the mother, the ‘compelling’ point, in the light of present medical knowledge, is at approximately the end of the first trimester. This is so because of the now-established medical fact, referred to above at 149, that until the end of the first trimester mortality in abortion may be less than mortality in normal childbirth.

[. . .]

With respect to the State’s important and legitimate interest in potential life, the ‘compelling’ point is at viability. This is so because the fetus then presumably has the capability of meaningful life outside the mother’s womb. State regulation protective of fetal life after viability thus has both logical and biological justifications. If the State is interested in protecting fetal life after viability, it may go so far as to proscribe abortion during that period, except when it is necessary to preserve the life or health of the mother.

[. . .]

The trimester framework

To summarize and to repeat:

1. A state criminal abortion statute of the current Texas type, that excepts from criminality only a life-saving procedure on behalf of the mother, without regard to pregnancy stage and without recognition of the other interests involved, is violative of the Due Process Clause of the Fourteenth Amendment.

(a) For the stage prior to approximately the end of the first trimester, the abortion decision and its effectuation must be left to the medical judgment of the pregnant woman’s attending physician.

(b) For the stage subsequent to approximately the end of the first trimester, the State, in promoting its interest in the health of the mother, may, if it chooses, regulate the abortion procedure in ways that are reasonably related to maternal health.

(c) For the stage subsequent to viability, the State in promoting its interest in the potentiality of human life may, if it chooses, regulate, and even proscribe, abortion except where it is necessary, in appropriate medical judgment, for the preservation of the life or health of the mother.

Words to know

terminate her pregnancy — end the pregnancy by abortion

stigma — mark of social disgrace

appellant — the person who appealed the lower court’s decision; here, ‘Jane Roe’

amici — outside groups who filed briefs advising the Court

compelling — strong enough to justify limiting a constitutional right

trimester — one of the three three-month stages of pregnancy

viability — the point when a fetus could survive outside the womb

proscribe — forbid by law